

		Defendant showed good cause to maintain the confidentiality of the following category of documents: motor vehicle information report/specifications; service policies and procedures; and warranty extensions or modifications. (Mendoza Decl., ¶¶ 6, 8, and 10.) Plaintiff did not show Defendant waived its right to maintain the confidential designation of these documents. Defendant's motion to maintain the confidentiality of the documents produced reflecting the motor vehicle information report/specifications (KA/HORNER000938), service policies and procedures (KA/HORNER000753-KA/HORNER000928), and warranty extensions or modifications is granted. Defendant did not show good cause to maintain the confidential designation of the warranty transaction history documents and Defendant's connect case reports and customer case reports produced in response to CCP 871.26, subdivision (h). Defendant's motion to maintain the confidentiality of these documents is denied. The Court notes Defendant described the documents produced in relation to warranty extensions or modifications as KA/HORNER000934-9370, which would include the documents described as produced in response to warranty transaction history, KA/HORNER000939-KA/HORNER000959. Defendant should be prepared to discuss whether the warranty extensions or modifications includes KA/HORNER000934-KA/HORNER0009370 or KA/HORNER000934-KA/HORNER000937. Defendant shall give notice.
108	2025-01488153 Ashouri vs. Khosravi Mortgage	1. Motion to Strike Portions of Complaint 2. Case Management Conference Defendants Khosravi Mortgage's, Farhad Khosravi's, and Fariba Partovi Yazdi's motion to strike portions of Plaintiff Mahmood Ashouri's Second Amended Complaint is granted with 15 days leave to amend. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (<i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civil Proc. before Trial</i>, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App. 3d 1, 6.) The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. (<i>Velez v. Smith</i> (2006) 142 Cal.App.4th 1154, 1174.) Defendants move to strike Plaintiff's claim for punitive damages stated in the Prayer for Relief. Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing

		evidence that the defendant has been guilty of oppression, fraud, or malice. At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).) Plaintiff acknowledges that he cannot obtain punitive damages based on his breach of contract claim alone. He argues that his cause of action for declaratory relief is not limited to contract interpretation and may sound in tort. Plaintiff is incorrect. Not only is a declaratory relief claim not a tort claim, but Plaintiff’s specific declaratory relief claim only requests relief based on the parties’ contract. As it currently stands, there are no allegations in the Second Amended Complaint that support punitive damages. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 20 (“punitive damages are never recoverable for breach of contract, no matter how willful or malicious, except where the wrongful act is also a tort.”) [internal citations omitted].) Plaintiff references his pending Motion for Leave to File a Third Amended Complaint which contains a third cause of action for willful violations of the California Financing Law. (Plaintiff’s Ex. A.) Without evaluating the merits of the proposed pleading, as a tort, this claim arguably could support a claim for punitive damages. Accordingly, the Court grants Defendants’ motion, but will allow Plaintiff the opportunity to amend to state allegations to support his claim for punitive damages. In light of the above, Plaintiff’s motion for leave to amend scheduled for December 21, 2026 at 2:00 p.m. in Department C27 is moot and hereby vacated. The case management conference is continued to February 22, 2027 at 10:00 a.m. in Department C27. Defendants are ordered to give notice.
111	2025-01497932 Roushanzamir vs. Thune	1. Demurrer - Other 2. Case Management Conference The hearing on Cross-Defendant Ali Roushanzamir’s Demurrer to Cross-Complaint is continued to 12/28/2026 at 2:00 p.m. in Department C27. The case management conference is continued to the same date and time. The Court notes that the proof of service for the demurrer reflects an incorrect email address for Cross-Complainants’ counsel. The proof states that opposing counsel was served at “brian@<u>bccceq</u>.com”; however, the email address of record for counsel is “brian@<u>bccesq</u>.com.” Given the lack of opposition, the Court cannot confirm whether the demurrer was actually received by Cross-Complainants’ counsel. Additionally, the declaration attached to the Demurrer does not demonstrate compliance with the meet and confer requirement of CCP section 430.41, which require a declaration stating either of the following: